

1.

CASE #	CASE NAME	HEARING NAME
CVRI2401385	MONTOYA vs RAMIREZ	MOTION TO BE RELIEVED AS COUNSEL FOR ANDRES PEREIRA

Tentative Ruling:

The motion to be relieved as counsel is granted. Counsel is relieved as counsel of record for client effective upon the filing of the proof of service of the signed order being served upon client. If the proof of service is not filed, counsel will remain counsel of record for all purposes related to this action.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS VS REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION FOR RELIEF FROM ANY WAIVER OF JURY TRIAL AND TO PERMIT PAYMENT OF JURY FEES

Tentative Ruling:

A party demanding a jury trial must post jury fees on or before the date scheduled for the initial case management conference in the action, and failure to do so waives the party's right to a jury trial. (C.C.P., § 631(c), (f)(5).) However, "[t]he court may, in its discretion upon just terms, allow a trial by jury although there may have been waiver of a trial by jury." (C.C.P., § 631(g).) The primary consideration in determining whether to grant relief from waiver is whether it "would result in any hardship to other parties or to the court, such as delay in rescheduling the trial for a jury or inconvenience to witnesses." (*TriCoast Builders, Inc. v. Fonnegra* (2024) 15 Cal.5th 766, 779.) "[C]ourts have also regularly considered other factors, including the timeliness of the request; whether the requester is willing to comply with applicable requirements for payment of jury fees; and the reasons supporting the request." (*Id.* at 779-780.) Courts may "forgive a party's technical noncompliance when the party has fulfilled the core objective of the statute, which is to give timely notice that a jury is demanded." (*Id.* at 782.) Doubts should be resolved "in favor of according to a litigant a jury trial." (*Id.* at 783.)

Plaintiff states he requested a jury trial in his initial CMC statement, as well as the joint stipulation re TSC. (Bartels Decl.) He states he attempted to pay jury fees on three unspecified dates but were rejected, and that he remains ready and willing to pay the \$150 fee immediately upon the Court's direction to the Clerk to accept it. (*Id.*) The parties had proceeded for years as though there would be a jury trial of all claims. Defendants state they assumed Plaintiff posted the jury fees. Defendants' assertion that Plaintiff "may attempt to use this request for relief, or perhaps the current status of this matter as a bench trial, to continue trial," is speculative at this juncture and not a basis to deny the request. **The motion is granted, and Plaintiff is ordered to post jury fees within 2 court days. An Order to Show Cause Re: Sanctions Not to Exceed \$1,500 or Revert to Court Trial is set for September 17, 2026, at 8:30 a.m.**